



RESIDENTIAL BUYER/TENANT REPRESENTATION AGREEMENT - SHORT FORM

USE OF THIS FORM BY PERSONS WHO ARE NOT MEMBERS OF THE TEXAS ASSOCIATION OF REALTORS®, INC. IS NOT AUTHORIZED.
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1. **PARTIES:** This agreement is made between _____ (Collectively, "Client") and _____ ("Broker").
2. **APPOINTMENT:** Client appoints Broker as Client's real estate agent subject to the terms of this agreement.
3. **DEFINITIONS:** In this agreement, "acquire" means to purchase or lease real property. "Market Area" means that area in the State of Texas specified below. **THIS SECTION SHOULD NOT BE LEFT BLANK.** (*Insert property address, subdivision, city, county, zip code, or other geographic description*): _____

4. **TERM:** This agreement begins on _____ and ends at 11:59 p.m. on _____ ("Term").
5. **BROKER OBLIGATIONS:** Broker must comply with minimum duties as required by law. Broker may represent other prospective buyers or tenants who may seek to acquire the same properties as Client. (*Check only one box*)
☐ Full Services. Broker will use Broker's best efforts to assist Client in the acquisition of property in the Market Area.
☐ Showing Services. Paragraphs 6, 7, and 8 do not apply. Broker will provide Client with access to properties in the Market Area. Client will pay Broker a fee of \$_____ due upon execution of this agreement.
6. **CLIENT OBLIGATIONS:** Client must: (a) work exclusively through Broker in acquiring property in the Market Area and (b) inform other brokers, sales agents, sellers, and landlords that Broker exclusively represents Client for the purpose of acquiring property in the Market Area and refer all such persons to Broker. Attendance at open houses or property showings where no advice, opinions, negotiations, or substantive brokerage services are provided does not violate these obligations. If attending such events without Broker, Client will inform other brokers, sales agents, sellers, and landlords that Client has a representation agreement with Broker.
7. **BROKER COMPENSATION:** Compensation paid to brokers or the sharing of compensation between brokers is not set by law nor fixed, controlled, recommended, or suggested by the Association of REALTORS®, its local affiliates, any Multiple Listing Service (MLS), or any other listing service. Compensation paid to brokers is fully negotiable. Each broker independently determines their fees. The total compensation Broker receives for brokerage services provided under this agreement, from any and all sources, may not exceed the amount stated in this agreement.

A. **Broker's Fees:** When Earned and Payable, Client will pay Broker (*Complete all that apply*):

- (1) (Purchases) _____% of the sales price or a flat fee of \$_____.
- (2) (Leases) _____% of one month's rent or _____% of all rents to be paid over the term of the lease or a flat fee of \$_____.

- B. **Earned and Payable:** Broker's fees are "Earned" when Client enters into a contract to acquire property in the Market Area during the Term. Broker's fees are "Payable," either during the Term or after it ends, upon the earlier of: (1) the Closing of a transaction to acquire a property or (2) Client's breach of a contract to acquire a property in the Market Area. "Closing" means the date legal title to a property is conveyed to Client or the date Client enters a binding lease.

- C. Source of Compensation: Client may seek to obtain payment of the Broker's fees specified in Paragraph 7A from the seller or landlord. Broker will assist Client in negotiating any contribution from the seller or landlord; however, **Client remains responsible for payment of the compensation due Broker under this agreement, less any amounts contributed, if any, by the seller or landlord.**
- D. Escrow Authorization: Client authorizes, and Broker may instruct, any escrow or closing agent to collect and disburse to Broker all amounts Payable to Broker.
8. **INTERMEDIARY**: Client ☐ does or ☐ does not authorize Broker to act as an intermediary if Client wishes to acquire one of Broker's listings. If intermediary is not authorized, Client will not be shown or acquire Broker's listings. **In accordance with applicable state law, Broker and Broker's associates: may not disclose to Client that the seller or landlord will accept a price less than the asking price unless otherwise instructed in a separate writing by the seller or landlord; may not disclose to the seller or landlord that Client will pay a price greater than the price submitted in a written offer to the seller or landlord unless otherwise instructed in a separate writing by Client; may not disclose any confidential information or any information a seller or landlord or Client specifically instructs Broker in writing not to disclose unless otherwise instructed in a separate writing by the respective party or required to disclose the information by The Real Estate License Act or a court order or if the information materially relates to the condition of the property; shall treat all parties to the transaction honestly; and shall comply with The Real Estate License Act. If Broker acts as intermediary, Client remains responsible for payment of the compensation due Broker under this agreement. If Client agrees in the sales contract to pay any portion of the seller's brokerage compensation, Client shall also pay that amount in addition to the compensation due Broker under this agreement.**
9. **LIMITATION OF LIABILITY**: Neither Broker nor any other broker, or their associates, is responsible or liable for any person's personal injuries or for any loss or damage to any person's property that is not caused by Broker or Broker's associates. Client will hold Broker, any other broker, and their associates, harmless from any such injuries or losses. Client will indemnify Broker and Broker's associates against any claims for injury or damage caused by Client to others or their property.

This is a legally binding agreement. READ IT CAREFULLY. If you do not understand the effect of this agreement, consult your attorney BEFORE signing. The parties authorize the use of electronic signatures for the signing of this agreement.

Broker's Printed Name _____ License No. _____

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☐ Broker's Signature _____ Date _____

☐ Broker's Associate's Signature _____

Broker's Associate's Printed Name, _____ License No. _____
if applicable

Client's Printed Name _____

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Client's Signature _____ Date _____

Client's Printed Name _____

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Client's Signature _____ Date _____